

IN THE UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF ARKANSAS
TEXARKANA DIVISION

CHARLES BRIDGES

PLAINTIFF

VS.

NO.: _____

BLUESTAR SERVICES LLC and
MAHMUT ZULIC

DEFENDANTS

COMPLAINT

COMES NOW the Plaintiff, Charles Bridges, by and through his attorneys, and for his Complaint against the Defendants, states and alleges the following:

PARTIES

1. Plaintiff, Charles Bridges, was at all times relevant a citizen and resident of Grenada County, Mississippi.

2. Defendant, Bluestar Services LLC (hereafter “Bluestar”), was at all times relevant a foreign corporation organized under the laws of the state of Illinois with its principal place of business located at 340 W. Irving Park Road, Roselle, Illinois 60172. Bluestar may be served through its registered agent for service of process, Muhamed Begovic, 340 W. Irving Park Road, Roselle, Illinois 60172.

3. Defendant Mahmut Zulic (hereafter “Zulic”) was at all times relevant a citizen of the state of Missouri who may be served process at his residential address, 3719 Woodbrook Ct., St. Louis, Missouri 63129.

4. Defendant Bluestar was at all times relevant the employer of Defendant Zulic.

5. The incident giving rise to this cause of action occurred in the parking lot of the Travel Centers of America located in Prescott, Arkansas.

JURISDICTION AND VENUE

6. The United States District Court for the Western District of Arkansas has jurisdiction of this cause of action pursuant to 28 U.S.C. §1332 as Plaintiff is a resident of Mississippi, Defendants are residents of Illinois and Missouri, and the amount in controversy exceeds the amount required for federal jurisdiction in diversity of citizenship causes of action.

7. This Court has jurisdiction over Defendants pursuant to the Arkansas long-arm statute.

8. Venue of this action is governed by 28 U.S.C. §1391. Venue lies properly in the Western District of Arkansas, Texarkana Division, as the collision causing the injuries and damages in this matter occurred in Prescott, Nevada County, Arkansas.

FACTS

9. On or about March 21, 2019, at approximately 8:00 a.m., Plaintiff was seated in a 2020 Volvo tractor trailer at the Travel Centers of America parking lot in Prescott, Nevada County, Arkansas.

10. The 2020 Volvo was parked in a southerly direction and stationary at the time of the collision.

11. At the same time, Defendant Zulic was operating a 2005 Volvo tractor trailer in the parking lot of Travel Centers of America. The 2005 Volvo was owned by Defendant Bluestar Services LLC.

12. Defendant Zulic fell asleep while driving the 2005 Volvo tractor trailer and collided with the passenger side of the 2020 Volvo occupied by Plaintiff.

13. The collision damaged the 2020 Volvo and injured Plaintiff.

14. At the time of the collision, Defendant Zulic was an employee and/or agent of Defendant Bluestar.

15. At the time of the collision, Defendant Zulic was acting within the course and scope of his employment with Defendant Bluestar.

16. At the time herein complained of Plaintiff used due care and caution and was completely free from negligence in any manner.

CAUSES OF ACTION

17. At such time and place, Defendant Zulic disregarded his duty as a motorist and failed to act reasonably under the existing circumstances. Defendant's negligence included the following:

- a. Failure to maintain proper control of his vehicle;
- b. Failure to keep a proper lookout for other vehicles;
- c. Operating the vehicle in an unsafe and unreasonable manner without due regard for the safety of others, including the Plaintiff;
- d. Operation of the vehicle in an impaired condition;
- e. Operation of the vehicle in a manner that was inattentive and such inattention is not reasonable and prudent in maintaining reasonable control;
- f. Failure to follow the rules of the road; and
- g. Other acts of negligence or omissions by Defendant.

18. The negligent acts and omissions of Defendant Zulic are imputed to Defendant Bluestar.

19. Defendant Bluestar is responsible and liable for the negligence of its employee/agent, Defendant Zulic, under the legal doctrines of *respondeat superior*, vicarious

liability, joint enterprise, and/or the principles of agency as adopted in the State of Arkansas and federal courts.

20. Defendant Bluestar negligently hired, trained and/or supervised Defendant Zulic.

21. Defendant Bluestar knew or in the exercise of reasonable care should have known that Defendant Zulic presented a risk of danger to other drivers and the general public.

PROXIMATE CAUSE

22. The Defendants' negligence proximately caused the collision described herein and the injuries and damages sustained by the Plaintiff.

INJURIES AND DAMAGES

23. Plaintiff sustained serious injuries as a result of the collision.

24. Plaintiff is entitled to the following damages:

- a. the nature, extent, duration and permanency of his injuries;
- b. the expenses of his medical care, treatment and services received;
- c. pain, suffering, mental anguish experienced in the past and reasonably certain to be experienced in the future;
- d. the value of any wages, income, profits, earnings, and salary lost; and
- e. any other relief the Court or Jury deems appropriate based upon the circumstances.

DEMAND FOR JURY TRIAL

25. The Plaintiff demands a trial by Jury.

WHEREFORE, Plaintiff respectfully prays that Defendants be cited to appear herein, and for a judgment against Defendants to compensate Plaintiff for his damages for a sum in excess of that required for federal court jurisdiction in a diversity case, pre and post judgment interest as

provided by law, costs of suit, and for such other and further relief, whether general or specific, in law or in equity, to which Plaintiff may be entitled.

Respectfully submitted,

CHARLES BRIDGES

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